

COMMITTEE ON MILITARY AFFAIRS AND BORDER SECURITY
SENATE AMENDMENTS TO S.B. 1213
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-1051, Arizona Revised Statutes, is amended to
3 read:

4 11-1051. Cooperation and assistance in enforcement of
5 immigration laws; indemnification

6 A. ~~No~~ AN official or agency of this state or a county, city, town
7 or other political subdivision of this state may NOT limit or restrict the
8 enforcement of federal immigration laws to less than the full extent
9 ~~permitted~~ ALLOWED by federal law.

10 B. For any lawful stop, detention or arrest made by a law
11 enforcement official or a law enforcement agency of this state or a law
12 enforcement official or a law enforcement agency of a county, city, town
13 or other political subdivision of this state in the enforcement of any
14 other law or ordinance of a county, city or town or this state where
15 reasonable suspicion exists that the person is an alien and is unlawfully
16 present in the United States, a reasonable attempt shall be made, when
17 practicable, to determine the immigration status of the person, except if
18 the determination may hinder or obstruct an investigation. Any person who
19 is arrested shall have the person's immigration status determined before
20 the person is released. The person's immigration status shall be verified
21 with the federal government pursuant to 8 United States Code section
22 1373(c). A law enforcement official or agency of this state or a county,
23 city, town or other political subdivision of this state may not consider
24 race, color or national origin in implementing the requirements of this
25 subsection except to the extent ~~permitted~~ ALLOWED by the United States or
26 Arizona Constitution. A person is presumed to not be an alien who is
27 unlawfully present in the United States if the person provides to the law
28 enforcement officer or agency any of the following:

- 1 1. A valid Arizona driver license.
- 2 2. A valid Arizona nonoperating identification license.
- 3 3. A valid tribal enrollment card or other form of tribal
- 4 identification.

5 4. If the entity requires proof of legal presence in the United
6 States before issuance, any valid United States federal, state or local
7 government issued identification.

8 C. If an alien who is unlawfully present in the United States is
9 convicted of a violation of state or local law, ~~on discharge from~~
10 ~~imprisonment or on the assessment of any monetary obligation that is~~
11 ~~imposed~~, THE COURT SHALL IMMEDIATELY NOTIFY the United States immigration
12 and customs enforcement ~~[or the United States customs and border~~
13 ~~protection]~~ ~~shall be immediately notified~~. IF AN ALIEN WHO IS UNLAWFULLY
14 PRESENT IN THE UNITED STATES IS DISCHARGED FROM IMPRISONMENT OR IS
15 ASSESSED A MONETARY OBLIGATION, THE AGENCY OF THIS STATE OR THE COUNTY,
16 CITY, TOWN OR OTHER POLITICAL SUBDIVISION OF THIS STATE THAT DISCHARGES
17 THE ALIEN OR ASSESSES THE MONETARY OBLIGATION SHALL IMMEDIATELY NOTIFY THE
18 UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT ~~[OR THE UNITED STATES~~
19 ~~CUSTOMS AND BORDER PROTECTION]~~.

20 D. Notwithstanding any other law, a law enforcement agency may
21 securely transport an alien who the agency has received verification is
22 unlawfully present in the United States and who is in the agency's custody
23 to a federal facility in this state or to any other point of transfer into
24 federal custody that is outside the jurisdiction of the law enforcement
25 agency. A law enforcement agency shall obtain judicial authorization
26 before securely transporting an alien who is unlawfully present in the
27 United States to a point of transfer that is outside of this state.

28 E. In the implementation of this section, an alien's immigration
29 status may be determined by:

30 1. A law enforcement officer who is authorized by the federal
31 government to verify or ascertain an alien's immigration status.

32 2. The United States immigration and customs enforcement or the
33 United States customs and border protection pursuant to 8 United States
34 Code section 1373(c).

35 F. Except as provided in federal law, officials or agencies of this
36 state and counties, cities, towns and other political subdivisions of this
37 state may not be prohibited or ~~in any way be~~ restricted from sending,
38 receiving or maintaining information relating to the immigration status,
39 lawful or unlawful, of any individual or exchanging that information with
40 any other federal, state or local governmental entity for the following
41 official purposes:

42 1. Determining eligibility for any public benefit, service or
43 license provided by any federal, state, local or other political
44 subdivision of this state.

45 2. Verifying any claim of residence or domicile if determination of
46 residence or domicile is required under the laws of this state or a

1 judicial order issued pursuant to a civil or criminal proceeding in this
2 state.

3 3. If the person is an alien, determining whether the person is in
4 compliance with the federal registration laws prescribed by title II,
5 chapter 7 of the federal immigration and nationality act.

6 4. Pursuant to 8 United States Code section 1373 and 8 United
7 States Code section 1644.

8 G. This section does not implement, authorize or establish ~~and~~
9 ~~shall not be construed to implement, authorize or establish~~ the REAL ID
10 act of 2005 (P.L. 109-13, division B; 119 Stat. 302), including the use of
11 a radio frequency identification chip.

12 H. A person who is a legal resident of this state may bring an
13 action in superior court to challenge any official or agency of this state
14 or a county, city, town or other political subdivision of this state that
15 adopts or implements a policy that limits or restricts the enforcement of
16 federal immigration laws, including 8 United States Code sections 1373 and
17 1644, to less than the full extent ~~permitted~~ ALLOWED by federal law. If
18 there is a judicial finding that an entity has violated this section, the
19 court shall order that the entity pay a civil penalty of ~~not less than~~
20 ~~five hundred dollars~~ AT LEAST \$500 and not more than ~~five thousand dollars~~
21 \$5,000 for each day that the policy has remained in effect after the
22 filing of an action pursuant to this subsection.

23 I. A court shall collect the civil penalty prescribed in subsection
24 H of this section and remit the civil penalty to the state treasurer for
25 deposit in the gang and immigration intelligence team enforcement mission
26 fund established by section 41-1724.

27 J. The court may award court costs and reasonable attorney fees to
28 any person or any official or agency of this state or a county, city, town
29 or other political subdivision of this state that prevails by an
30 adjudication on the merits in a proceeding brought pursuant to this
31 section.

32 K. Except in relation to matters in which the officer is adjudged
33 to have acted in bad faith, a law enforcement officer is indemnified by
34 the law enforcement officer's agency against reasonable costs and
35 expenses, including attorney fees, incurred by the officer in connection
36 with any action, suit or proceeding brought pursuant to this section in
37 which the officer may be a defendant by reason of the officer being or
38 having been a member of the law enforcement agency.

39 L. This section shall be implemented in a manner consistent with
40 federal laws regulating immigration, protecting the civil rights of all
41 persons and respecting the privileges and immunities of United States
42 citizens.

1 Sec. 2. Section 13-901, Arizona Revised Statutes, is amended to
2 read:

3 13-901. Probation

4 A. If a person who has been convicted of an offense is eligible for
5 probation, the court may suspend the imposition or execution of sentence
6 and, if so, shall without delay place the person on intensive probation
7 supervision pursuant to section 13-913 or supervised or unsupervised
8 probation on such terms and conditions as the law requires and the court
9 deems appropriate, including participation in any programs authorized in
10 title 12, chapter 2, article 11. If a person is not eligible for
11 probation, imposition or execution of sentence shall not be suspended or
12 delayed. If the court imposes probation, it may also impose a fine as
13 authorized by chapter 8 of this title. If probation is granted the court
14 shall impose a condition that the person waive extradition for any
15 probation revocation procedures and it shall order restitution pursuant to
16 section 13-603, subsection C where there is a victim who has suffered
17 economic loss. When granting probation to an adult the court, as a
18 condition of probation, shall assess a monthly fee of not less than \$65
19 unless, after determining the inability of the probationer to pay the fee,
20 the court assesses a lesser fee. This fee is not subject to any
21 surcharge. In justice and municipal courts the fee shall only be assessed
22 when the person is placed on supervised probation. For persons placed on
23 probation in the superior court, the fee shall be paid to the clerk of the
24 superior court and the clerk of the court shall pay all monies collected
25 from this fee to the county treasurer for deposit in the adult probation
26 services fund established by section 12-267. For persons placed on
27 supervised probation in the justice court, the fee shall be paid to the
28 justice court and the justice court shall transmit all of the monies to
29 the county treasurer for deposit in the adult probation services fund
30 established by section 12-267. For persons placed on supervised probation
31 in the municipal court, the fee shall be paid to the municipal court. The
32 municipal court shall transmit all of the monies to the city treasurer who
33 shall transmit the monies to the county treasurer for deposit in the adult
34 probation services fund established by section 12-267. Any amount
35 assessed pursuant to this subsection shall be used to supplement monies
36 used for the salaries of adult probation and surveillance officers and for
37 support of programs and services of the superior court adult probation
38 departments.

39 B. The period of probation shall be determined according to section
40 13-902, except that if a person is released pursuant to section 31-233,
41 subsection B and community supervision is waived pursuant to section
42 13-603, subsection K, the court shall extend the period of probation by
43 the amount of time the director of the state department of corrections
44 approves for the inmate's temporary release.

45 C. The court, in its discretion, may issue a warrant for the
46 rearrest of the defendant and may modify or add to the conditions or, if
47 the defendant commits an additional offense or violates a condition, may

1 revoke probation in accordance with the Arizona rules of criminal
2 procedure at any time before the expiration or termination of the period
3 of probation. If the court revokes the defendant's probation and the
4 defendant is serving more than one probationary term concurrently, the
5 court may sentence the person to terms of imprisonment to be served
6 consecutively.

7 D. At any time during the probationary term of the person released
8 on probation, any probation officer, without warrant or other process and
9 at any time until the final disposition of the case, may rearrest any
10 person and bring the person before the court.

11 E. The court, on its own initiative or on application of the
12 probationer, after notice and an opportunity to be heard for the
13 prosecuting attorney and, on request, the victim, may terminate the period
14 of probation or intensive probation and discharge the defendant at a time
15 earlier than that originally imposed if in the court's opinion the ends of
16 justice will be served and if the conduct of the defendant on probation
17 warrants it.

18 F. When granting probation the court may require that the defendant
19 be imprisoned in the county jail at whatever time or intervals,
20 consecutive or nonconsecutive, the court shall determine, within the
21 period of probation, as long as the period actually spent in confinement
22 does not exceed one year or the maximum period of imprisonment allowed
23 under chapter 7 of this title, whichever is the shorter.

24 G. If the defendant is placed on lifetime probation and has served
25 one year in the county jail as a term of probation, the court may require
26 that the defendant be additionally imprisoned in the county jail at
27 whatever time or intervals, consecutive or nonconsecutive, the court shall
28 determine, within the period of probation if the defendant's probation is
29 revoked by the court and the defendant is subsequently reinstated on
30 probation. The period actually spent in confinement as a term of being
31 reinstated on probation shall not exceed one year or, when including the
32 initial one-year period of incarceration imposed as a term of probation,
33 the maximum period of imprisonment allowed under chapter 7 of this title,
34 whichever is shorter.

35 H. If restitution is made a condition of probation, the court shall
36 fix the amount of restitution and the manner of performance pursuant to
37 chapter 8 of this title.

38 I. When granting probation, the court shall set forth at the time
39 of sentencing and on the record the factual and legal reasons in support
40 of each sentence.

41 J. If the defendant meets the criteria set forth in section
42 13-901.01 or 13-3422, the court may place the defendant on probation
43 pursuant to either section. If a defendant is placed on probation
44 pursuant to section 13-901.01 or 13-3422, the court may impose any term of
45 probation that is authorized pursuant to this section and that is not in
46 violation of section 13-901.01.

1 K. If the court imposes a term of probation, the court may require
2 the defendant to report to a probation officer. The court or the
3 defendant's probation officer may allow the defendant to fulfill a
4 reporting requirement through remote reporting. The probation officer
5 shall take into consideration and make accommodations for the
6 probationer's work schedule, family caregiver obligations, substance abuse
7 treatment or recovery program, mental health treatment, transportation
8 availability and medical care requirements before setting the reporting
9 time and location requirements for the probationer.

10 L. If a probationer makes a written request to the supervising
11 probation department to courtesy transfer the probationer's intensive
12 probation supervision or supervised probation to another county in this
13 state with the intent to reside in that county and provides proof of
14 family caregiver obligations, employment or housing, or an offer of
15 employment or housing that will assist in the probationer's positive
16 behavioral change, the supervising probation department shall do all of
17 the following:

18 1. Confirm the details of the probationer's employment, housing or
19 family caregiving plans.

20 2. Review any victim safety concerns and ensure compliance with the
21 victims' bill of rights.

22 3. Submit the request for permission to proceed to the receiving
23 county within seven business days after receipt.

24 M. After verifying the information submitted by the sending
25 probation department pursuant to subsection L of this section, the
26 receiving probation department shall provide the sending probation
27 department with permission for the probationer to proceed to the receiving
28 county within seven business days after receipt unless the receiving
29 probation department finds the basis for the plan is not factual or the
30 transfer will endanger the victim.

31 N. If a probationer's intensive probation supervision or supervised
32 probation is courtesy transferred to another county pursuant to subsection
33 L of this section and the probationer subsequently violates the terms of
34 the probationer's probation or commits an additional offense while on
35 probation, the probation department in the county in which the probation
36 violation or additional offense occurred may not return the probationer's
37 intensive probation supervision or supervised probation back to the county
38 in which the probationer's probation was originally imposed except for
39 revocation hearings or an order of the court.

40 O. NOTWITHSTANDING ANY OTHER LAW, IF THE PERSON IS AN ALIEN WHO IS
41 UNLAWFULLY PRESENT IN THE UNITED STATES AND WHO IS CONVICTED OF A
42 VIOLATION OF STATE OR LOCAL LAW:

43 1. THE ALIEN IS NOT ELIGIBLE FOR PROBATION.

44 2. THE COURT SHALL IMMEDIATELY NOTIFY THE UNITED STATES IMMIGRATION
45 AND CUSTOMS ENFORCEMENT ~~[OR THE UNITED STATES CUSTOMS AND BORDER~~
46 ~~PROTECTION]~~ AS PRESCRIBED BY SECTION 11-1051.

1 P. IN THE ENFORCEMENT OF SUBSECTION O OF THIS SECTION, AN ALIEN'S
2 IMMIGRATION STATUS MAY BE DETERMINED BY:

3 1. A LAW ENFORCEMENT OFFICER WHO IS AUTHORIZED BY THE FEDERAL
4 GOVERNMENT TO VERIFY OR ASCERTAIN AN ALIEN'S IMMIGRATION STATUS.

5 2. THE UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT OR THE
6 UNITED STATES CUSTOMS AND BORDER PROTECTION PURSUANT TO 8 UNITED STATES
7 CODE SECTION 1373(c).

8 Enroll and engross to conform

9 Amend title to conform

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